



File No.: EXP202304841

## SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On May 12, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in the procedure for the exercise of rights of file number EXP202104465, initiated against TRACTAMENT D'AIGUES TEIA, S.L., with NIF B60823796 (hereinafter, the respondent).

In this file, it is recorded that the complainant exercised their right to erasure of personal data concerning them, without this request being duly addressed, issuing a resolution requiring the following:

FIRST: TO GRANT the complaint filed by A.A.A. and to urge TRACTAMENT D'AIGUES TEIA, S.L., with NIF B60823796, to send the complainant a certification within ten working days following the notification of this resolution, addressing the exercised right to erasure or providing a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution.

The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: The resolution of the procedure for the exercise of rights was notified to the respondent, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette dated March 17, 2023, after two unsuccessful attempts at electronic and postal notification, as evidenced in the file, granting them a period of ten working days to address the exercise of the right to erasure, as evidenced in the file.

THIRD: On October 20 and December 24, 2022, with entry registration numbers REGAGE22e00047126581 and REGAGE22e00059565910 respectively, the complainant informed this Agency that the respondent had not complied with the resolution. Therefore, on October 25, 2022, and January 3, 2023, the respondent was required to send the complainant a certification of compliance with the referenced resolution in the terms described therein within five working days, and to communicate to this Agency the actions taken within ten working days.

The first of these requirements was sent by electronic notification and was not collected by the responsible party within the availability period, being understood as

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therefore rejected on November 5, 2022, while the second was returned to sender by Correos on February 2, 2023, for not being collected at the office after two failed delivery attempts, as evidenced by the acknowledgments of receipt in the file.

FOURTH: After the period of the initial resolution and the subsequent requests, the party being claimed has not sent a response to this Agency that proves it has addressed the right to erasure exercised or that it has denied it with justification indicating the reasons why the request cannot be granted.

FIFTH: Against the aforementioned resolution, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it. Likewise, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

SIXTH: According to the report obtained from the AXESOR tool, the entity TRACTAMENT D'AIGUES TEIA, S.L. is a microenterprise established in 1995, with the last submitted financial year being 2019, recording sales amounting to €77,739.

SEVENTH: On April 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the party being claimed, for the alleged infringement of Article

58.2 of the GDPR, classified under Article 83.6 of the GDPR.

After two unsuccessful attempts to deliver the postal notification of the initiation agreement, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the notification was made by means of an announcement published in the Official State Gazette dated June 7, 2023.

EIGHTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision of which the party being claimed was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed. Therefore, considering that the party being claimed has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

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#### PROVEN FACTS

FIRST: The resolution of the procedure for the exercise of rights and the requests for compliance indicated in the first, second, and third antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and executable due to the expiration of the deadlines established for the filing of the appeals indicated therein.

SECOND: The party being claimed has not sent any response to this Agency that proves compliance with the resolution.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the party being claimed, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated June 7, 2023, after two unsuccessful delivery attempts at the postal address.

FOURTH: The party being claimed has not submitted allegations to the initiation agreement of this sanctioning procedure.

#### LEGAL GROUNDS

I

##### Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

##### Obligation not fulfilled

In accordance with the evidence available, it is considered that the party being claimed has failed to

comply with the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the party being claimed, for violation of Article 58.2.d) of the GDPR, which states the following:

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"2. Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period;"

III

Classification and Qualification of the Violation

This violation is classified in Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this Article with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

For the purposes of the statute of limitations for violations, the alleged violation is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating circumstances apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the controller the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period..."

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on TRACTAMENT D'AIGUES TEIA, S.L., with NIF B60823796, for a violation of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO REQUIRE TRACTAMENT D'AIGUES TEIA, S.L., with NIF B60823796, to submit to the

claimant, within ten working days following the notification of this resolution, a certification addressing the exercised right of Erasure or a reasoned denial indicating the reasons why the request cannot be accommodated, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202104465. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to TRACTAMENT D'AIGUES TEIA, S.L.

FOURTH: To warn the sanctioned party that the imposed sanction must be paid once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. In the absence of payment, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Director of the Spanish Agency for Data Protection

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